

Consumer Protection and Policy Risk in Real Estate Transactions: A Thematic Review of Practitioner-Reported Issues

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ABSTRACT

This article reorganizes the policy implications reported in a 2016 doctoral dissertation into a consumer-protection risk framework for real estate transactions. The source study combined a survey of licensed practitioners with brief interviews and identified six policy issues encountered in practice: hidden charges upon turnover, sub-standard construction, real estate scams, properties in areas prone to calamities and hazards, fraudulent documents, and land conversion. The dissertation did not report a separate interview sample size or theme frequencies, so the present article treats the six issues as qualitative practitioner-reported themes rather than prevalence estimates. The themes span the transaction life cycle. Hidden charges concern pre-sale disclosure and closing transparency; sub-standard construction concerns product quality and post-sale accountability; scams and fraudulent documents concern authenticity and ownership; hazard-prone locations concern physical risk and buyer due diligence; and land conversion concerns the relationship between private development and local land-use planning. By grouping these concerns into disclosure, quality, authenticity,

location, and land-use governance, the article provides a structured way to understand how consumer harm may arise in real estate transactions. The findings support stronger documentation, clearer disclosure, verification before purchase, attention to hazards, and alignment with approved land-use and zoning instruments, while recognizing that the source evidence is historical and descriptive.

Keywords: *consumer protection, real estate transactions, hidden charges, construction quality, property fraud, hazard risk, land conversion*

INTRODUCTION

Real estate transactions combine legal rights, physical assets, financing, location risk, construction quality, and long-term household financial commitments. Consumer protection in this setting is therefore multidimensional. A buyer may face problems even when the sale price itself is acceptable: the final cost may include undisclosed charges, the house may contain construction defects, ownership documents may be unreliable, the site may be exposed to hazards, or the development may conflict with land-use controls.

The source dissertation captured these concerns through brief interviews with practitioners conducted alongside the survey. Rather than treating the interview material as a full qualitative study, this article uses the reported policy implications as a set of practitioner-identified risk themes. The aim is to organize them into a transaction-risk framework that can guide future research and editorial discussion.

Source and Analytical Approach

The dissertation reports that survey questionnaires were followed by brief interviews focused on policy implications. It does not separately state how many practitioners were interviewed, how interviews were coded, or how frequently each theme appeared. Accordingly, this article does not infer prevalence, saturation, or statistical importance. It performs a documentary thematic reorganization of the six issues explicitly reported in the results chapter.

Reported issue Primary risk domain Transaction stage most

directly implicated Source-oriented response

Hidden charges upon turnover Disclosure and total transaction cost

Marketing, reservation, closing, turnover

Verify documents and computations; emphasize miscellaneous and transfer- related fees

Reported issue Primary risk domain Transaction stage most

directly implicated Source-oriented response

Sub-standard construction Product quality and accountability

Construction and turnover Consider quality assurance and warranty arrangements

Real estate scam Ownership / transaction integrity Sale, financing, title transfer Verify transaction legitimacy and buyer records

Calamity- or hazard-prone areas Physical and location risk Site selection and due diligence Assess flood, landslide, fault, and disaster exposure

Fraudulent documents Document authenticity Due diligence and registration Verify records with appropriate public offices

Land conversion Land-use governance Development approval and zoning

Check CLUP / zoning consistency and approved conversion

Theme 1: Disclosure and Hidden Transaction Costs

The dissertation identifies hidden charges upon turnover as a policy concern. It describes situations in which transfer, miscellaneous, utility-connection, or similar charges may not have been properly declared or sufficiently emphasized during the sales process. From a consumer-protection perspective, the central issue is not only whether a fee is legally chargeable but whether the buyer can understand the expected total financial obligation before committing to the transaction.

The source recommends verification of documents and computations before closing a deal. Reframed analytically, this is a disclosure-quality issue: the closer the final payable amount is to what a buyer reasonably understood during marketing and reservation, the lower the risk of surprise, dispute, or loss of trust.

Theme 2: Construction Quality and Post-Sale Accountability

Sub-standard construction is the second major theme. The dissertation reports practitioner concerns about low-quality products or materials used in building houses and notes the possible relevance of a construction warranty bond during agreements. The source does not provide engineering inspection data, defect rates, or developer comparisons. Its contribution is therefore to identify

construction quality as a transaction risk visible to practitioners and buyers.

For journal purposes, the issue is best framed as an accountability chain: specifications and promises made before sale, actual construction quality, inspection and turnover, and mechanisms for rectification after defects are discovered. Future empirical work could measure the frequency and type of defects, but the dissertation itself supports only a qualitative recognition of the problem.

Theme 3: Scams, Double Sales, and Transaction Integrity

The dissertation discusses real estate scams and refers to double or triple sale situations. These concerns arise when different parties receive conflicting claims or when a transaction is represented in a way that does not correspond with valid ownership or financing records. The consumer-protection lesson is that apparent possession, marketing materials, or payment history cannot substitute for document and title verification.

The source example involving housing-loan records also shows that fraud risk can extend beyond a buyer-seller relationship and interact with financing institutions. A transaction-integrity framework therefore needs to consider the consistency of the seller's authority, title records, financing records, and the identity of the person receiving payment.

Theme 4: Hazard-Prone Locations

Practitioners also reported properties being sold in flood- or landslide-prone areas and near fault hazards. This theme moves consumer protection beyond documents and financial terms into physical safety. A property can be legally documented yet still expose occupants to

unacceptable physical risk. The dissertation's discussion of disaster-prone sites therefore supports treating location due diligence as a core component of informed real estate decision-making.

The source does not contain geotechnical, flood-frequency, or seismic analyses. Accordingly, the present article does not classify particular sites as safe or unsafe. It simply identifies hazard information as a material dimension that buyers and practitioners should examine through appropriate official and technical sources.

Theme 5: Fraudulent Documents

Fraudulent or unlawfully obtained property papers were another reported issue. The dissertation points to municipal or provincial assessor offices and the Land Registration Authority as sources that can assist in verification. This reinforces a basic distinction between documents presented by a transacting party and records independently confirmed through the public system. Consumer protection is strengthened when authenticity is verified rather than assumed.

Theme 6: Land Conversion and Local Land-Use Governance

The final reported policy issue was the conversion of agricultural land into residential use. The dissertation links land conversion to Comprehensive Land Use Plans and zoning ordinances approved by local governments. This theme is different from the others because it concerns not only individual consumer risk but also the public consequences of development patterns. Conversion decisions affect where housing, agriculture, infrastructure, and hazard exposure are located across a jurisdiction.

A policy-oriented interpretation is that real estate development should be examined in relation to formally adopted land-use instruments, rather than evaluated only as an individual market transaction. The dissertation later reports progress in LGU CLUP approval and updating, which reinforces the governance dimension of the issue.

Discussion: A Five-Domain Consumer-Protection Framework

The six practitioner-reported issues can be condensed into five risk domains: disclosure, quality, authenticity, location, and land-use governance. These domains occur at different points in the transaction life cycle and involve different institutions. Disclosure depends on sellers, developers, marketers, and financing terms; quality depends on construction and turnover processes; authenticity depends on reliable public records and verification; location risk depends on hazard information and site assessment; and land-use governance depends on local planning and development controls.

The framework also shows why consumer protection cannot be reduced to a single disclosure form or licensing rule. A licensed practitioner may still operate in a transaction involving poor construction, incomplete information, fraudulent documents, or a hazardous site. Professional competence therefore includes knowing when to refer a client to technical, legal, planning, or public-record specialists rather than treating every issue as a sales matter.

LIMITATIONS

The source describes the interview component as brief and does not report a separate interview sample,

interview guide, coding procedure, saturation process, or frequency of themes. This article therefore uses the reported issues

as documentary themes only. It does not claim qualitative prevalence or generalizability. Any current legal, building-code, hazard-map, land-use, or consumer-protection requirement should be independently verified before the article is used for contemporary guidance.

CONCLUSION

The dissertation's policy implications identify a coherent set of consumer risks across the real estate transaction process. Hidden charges, construction quality, scams, hazards, fraudulent documents, and land conversion are not isolated concerns; together they show that consumer protection requires transparency, verification, physical-risk awareness, quality accountability, and land-use governance. The value of the 2016 evidence is primarily historical and conceptual. Contemporary publication should preserve that time context and avoid implying that the listed issues represent current prevalence without a new investigation.

REFERENCE

- Hipolito, G. B. (2021). The organizational culture of real estate industry and its societal contributions [Doctoral dissertation, Pampanga State Agricultural University]. Shirley Publishing House.
- Republic Act No. 9646. (2009). Real Estate Service Act of the Philippines.